

1. MANFREDI v. LAKELAND VILLAGE OWNERS ASSN., ET AL., 25CV1279**(A) Plaintiffs' Motion to Compel Responses to Special Interrogatories (Set One)****(B) Plaintiffs' Motion to Compel Responses to Request for Production (Set One)****(C) Plaintiffs' Motion to Deem Matters Admitted****Plaintiffs' Motion to Compel Responses to Special Interrogatories (Set One)**

On March 17, 2026, pursuant to Code of Civil Procedure section 2030.290 (failure to serve timely response), plaintiffs filed a motion to compel responses to Special Interrogatories (Set One) propounded upon the following defendants: (1) Felix Wannenmacher; (2) Carol McInnis; (3) Allen Gribnau; (4) Lakeland Village Owners Association; and (5) Gary Cerio. Pursuant to Code of Civil Procedure section 2030.290, subdivision (c), plaintiffs' motion requests monetary sanctions, and pursuant to Code of Civil Procedure section 2023.030, plaintiffs' motion requests evidence, issue, and terminating sanctions.

It is the court's understanding that each of the five defendants have served a verified response to the interrogatories. Plaintiffs' notice of motion indicates the defendants served their responses on February 23, 2026, after 5:00 p.m. (plaintiffs claim this was untimely). Because each of the five defendants have served a verified response, the court denies the instant motion to compel as moot.

Plaintiffs' request for an order compelling further responses based on the argument that defendants' untimely responses are insufficient would require a motion under Code of Civil Procedure section 2030.300, subdivision (a) (motion to compel further response). However, no such motion has been submitted to the court.

Plaintiffs' Motion to Compel Responses to Request for Production (Set One)

On March 17, 2026, pursuant to Code of Civil Procedure section 2031.300 (failure to serve timely response), plaintiffs filed a motion to compel responses to Request for Production (Set One) propounded upon the following defendants: (1) Felix

Wannenmacher; (2) Carol McInnis; (3) Allen Gribnau; (4) Lakeland Village Owners Association; and (5) Gary Cerio. Pursuant to Code of Civil Procedure section 2031.300, subdivision (c), plaintiffs' motion requests monetary sanctions.

It is the court's understanding that each of the five defendants have served a verified response to the requests for production. Plaintiffs' notice of motion indicates the defendants served their responses on February 23, 2026, after 5:00 p.m. (plaintiffs claim this was untimely). Because each of the five defendants have served a verified response, the court denies the instant motion to compel as moot.

Plaintiffs' request for an order compelling further responses based on the argument that defendants' untimely responses are insufficient would require a motion under Code of Civil Procedure section 2031.310, subdivision (a) (motion to compel further response). However, no such motion has been submitted to the court.

Plaintiffs' Motion to Deem Matters Admitted

On March 17, 2026, pursuant to Code of Civil Procedure section 2033.280, plaintiffs filed a motion to deem matters admitted against all named defendants in this action on the grounds that defendants served an untimely response to plaintiffs' Request for Admissions (Set One) ("RFA"), which consisted of 150 requests each. Pursuant to Code of Civil Procedure sections 2023.010, subdivision (g) and 2023.030, plaintiffs seek monetary, issue, evidence, and terminating sanctions. Plaintiffs concurrently filed with their motion a declaration in support of their request to propound more than 35 RFAs. (Code Civ. Proc., § 2033.030, subd. (b).) Said declaration was executed by plaintiff Alfredo Manfredi on March 17, 2026.

On April 20, 2026, defendants filed a timely opposition and declaration from their attorney in support thereof. Pursuant to Code of Civil Procedure section 2023.030, defendants seek a monetary sanction in the amount of \$3,635.00 for attorney fees incurred in opposing the instant motion.

On April 24, 2026, plaintiffs filed a timely reply.

1. Background

On December 22, 2025, plaintiffs propounded RFAs on each named defendant. Plaintiffs expressly stated in the RFAs that Request Numbers 14 through 35 were intentionally reserved for later supplementation. The RFAs continue from Numbers 36 through 150. In support of the instant motion, plaintiff Alberto Manfredi declares that, concurrently served with the RFAs was the “Declaration of Alberto Fernando Manfredi In Support of Propounding More Than Thirty-Five Requests for Admission Per Defendant, pursuant to Code of Civil Procedure § 2033.050.” (Manfredi Decl., ¶ 3.) Defendants dispute this and claim they received no such declaration at the time the RFAs were propounded. Attached to the declaration of defense counsel as Exhibit A is a copy of the cover email, discovery requests, and corresponding proof of service propounded upon defendants on December 22, 2025. Neither the cover email, nor the attached proof of service, references Mr. Manfredi’s declaration, and Mr. Manfredi’s declaration is not attached to the RFAs within Exhibit A of defense counsel’s declaration. The court notes that, other than Mr. Manfredi’s declaration executed March 17, 2026 (and filed concurrently with the instant motion), plaintiffs have not submitted a copy of any other declaration in support of a request to propound more than 35 RFAs, and plaintiffs have not provided any proof of service showing such a declaration was propounded upon defendants concurrently with the RFAs on December 22, 2025.

On February 23, 2026,¹ defendants responded to the first 35 RFAs, including Request Numbers 1 through 13 and 36 through 57. Defendants objected to RFAs 58 through 150 on the grounds that they exceeded the statutory limit of 35 requests.

¹ All but one defendant served a verified response on February 23, 2026. The final defendant served an unverified response on February 23, 2026, followed by a verification served on February 26, 2026.

2. Legal Principles

If a party to whom requests for admission are directed fails to serve a timely response, “[t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010).” (Code Civ. Proc., § 2033.280, subd. (b).) “The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (Code Civ. Proc., § 2033.280, subd. (c).)

3. Discussion

Code of Civil Procedure section 2033.030 limits the number of RFAs a party may propound upon another party as a matter of right to 35. (Code Civ. Proc., § 2033.030, subd. (a).) If more than 35 RFAs (not relating to genuineness of documents) are sought, the propounding party must serve a “declaration of necessity.” (Code Civ. Proc., § 2033.030, subd. (b).) The sole ground for such declaration is that the excess RFAs are justified by the “complexity or the quantity of the existing and potential issues in the particular case.” (Code Civ. Proc., § 2033.040, subd. (a).) Unless a declaration of necessity is attached to the RFAs, the responding party must only answer the first 35 RFAs and an objection can be stated to the balance. (Code Civ. Proc., § 2033.030, subd. (b).)

Plaintiffs have not demonstrated that they attached a declaration of necessity to the RFAs that were propounded upon defendants. The declaration executed on March 17, 2026, does not suffice. Thus, even assuming that defendants’ responses to

the RFAs were untimely, the court finds that defendants have served, before the hearing on the instant motion, verified responses that are in substantial compliance with Code of Civil Procedure section 2033.220, as defendants responded to the first 35 RFAs.

The motion to deem matters admitted is denied. The court declines to impose sanctions against plaintiffs, as requested by defendants.

TENTATIVE RULING # 1:

(A) MOTION TO COMPEL RESPONSES TO SPECIAL INTERROGATORIES (SET ONE): THE MOTION IS DENIED AS MOOT.

(B) MOTION TO COMPEL RESPONSES TO REQUEST FOR PRODUCTION (SET ONE): THE MOTION IS DENIED AS MOOT.

(C) MOTION TO DEEM MATTERS ADMITTED: THE MOTION IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.